

**BEFORE THE
SAN MATEO COUNTY SUPERINTENDENT OF SCHOOLS
SAN MATEO COUNTY
STATE OF CALIFORNIA**

In the Matter of the Statement of Reduction in Force of:

JEAN KORTZ, a Certificated Employee, Respondent.

OAH No. 2025040155

PROPOSED DECISION

Administrative Law Judge Karen Reichmann, State of California, Office of Administrative Hearings, heard this matter on April 25, 2025, in Redwood City.

Attorney Adam Fiss represented the San Mateo County Office of Education (SMCOE).

Respondent Jean Kortz represented herself.

The record closed and the matter was submitted for decision on April 25, 2025.

FACTUAL FINDINGS

1. On February 24, 2025, the San Mateo County Superintendent of Schools adopted Resolution No. 25-01, reducing or discontinuing particular kinds of services for the 2025-2026 school year, and directing the Superintendent or her designee to send appropriate notices to all employees whose positions may be affected by the

reduction or discontinuation of services. Resolution 25-01 calls for the reduction of 1 FTE (full-time equivalent) certificated employee.

2. Resolution 25-01 calls for the elimination of the following position: Nurse on Special Assignment (NOSA).

3. The services set forth in Resolution No. 25-01 are particular kinds of services that may be reduced or discontinued within the meaning of Education Code section 44955. Associate Superintendent of Human Resources Tami Moore testified that the reduction of services is necessary because the services provided by the NOSA are no longer needed. The position was created during the COVID-19 pandemic to develop and implement health policies in response to the public health crisis.

4. Pursuant to Education Code section 44955, subdivision (b), if a county office of education reduces particular kinds of services resulting in a decrease in the number of certificated, permanent employees, the services of a permanent employee may not be terminated if another employee with less seniority is retained to render a service that the more senior employee is "certificated and competent to render."

5. Prior to March 15, 2025, Moore provided a written "Notification of Recommendation That Services Will Not Be Required" (Preliminary Notice) to respondent Jean Kortz. This notification informed respondent that her services will not be required for the 2025-2026 school year, pursuant to Education Code sections 44949 and 44955.

6. Respondent submitted a request for a hearing. On April 8, 2025, respondent was served with a Reduction in Force Packet, which included: the County Office Statement of Reduction in Force, Notice of Hearing, Notice of Participation form, and copies of relevant Education and Government Code sections.

7. Respondent is the only individual in the NOSA classification.
8. Respondent holds a Clear School Nurse Services credential. She holds no other credentials or certifications.
9. Respondent's seniority date is August 12, 2021. There are no SMCOE employees holding a School Nurse Services credential with less seniority than respondent who are being retained to provide services during the 2025-2026 school year.
10. Respondent testified about the various important public health projects she has worked on since starting her position in 2021. Although she initially worked on COVID-19 related matters, over time her work involved other health and safety issues. She described her position as a nurse leadership role, with oversight over the 50 nurses in the various school districts in the county. She has provided training to nurses and supported nurses in furthering their education. Respondent also has worked with the California Department of Public Health and San Mateo County public health officials to improve immunization rates, supply school sites with Narcan for treating narcotics overdoses, develop policies regarding exposure notifications, and prepare for an anticipated measles outbreak.
11. Respondent believes it is not in the best interest of the more than 90,000 students in the county for SMCOE to eliminate her position. She noted that studies have shown the numerous benefits of school nurses. Respondent also believes that SMCOE is planning to create a new nurse leadership position to perform the duties she has been performing but requiring an administrator credential.
12. Respondent also testified about her belief that she has not been treated fairly during her tenure at SMCOE, and that the decision to eliminate her position is in

retaliation for a grievance she made in August 2024. Respondent believes that her job title and compensation do not reflect her qualifications and her duties. She discussed the matter directly with the Superintendent, and she asked for a review of her compensation in her grievance. Moore explained that respondent's grievance was not acted on and was not placed in respondent's personnel file because respondent did not include a completed grievance form when she submitted it and instead submitted a narrative statement. Moore notified respondent by email that her grievance had not been accepted for this reason and respondent did not resubmit the grievance with a completed grievance form. Moore testified credibly that respondent's grievance played no role in the decision to eliminate the NOSA position.

LEGAL CONCLUSIONS

1. The Superintendent of Schools complied with all notice and jurisdictional requirements set forth in Education Code sections 44949 and 44955. (Factual Findings 5 and 6.)

2. The services referenced in the Resolution set forth in Factual Finding 1 are the kind that may be reduced or discontinued in accordance with applicable statutes and case law. (See Ed. Code, § 44955; *Campbell Elem. Teachers Assn., Inc. v. Abbott* (1978) 76 Cal.App.3d 796; *Rutherford v. Board of Trustees* (1976) 64 Cal.App.3d 167.) The Superintendent of Schools's decision to reduce or discontinue the services is neither arbitrary nor capricious, but rather a proper exercise of her discretion.

3. The evidence established that no certificated employee with less seniority than respondent is being retained to render services that respondent is certificated and competent to perform. (Factual Finding 9.)

4. In accordance with Education Code sections 44949 and 44955, cause exists for reduction of particular kinds of services by SMCOE by the commencement of the 2025-2026 school year. (Factual Findings 1-3.) The cause relates solely to the welfare of SMCOE and its students, within the meaning of Education Code section 44949. It was not established that the elimination of respondent's position was retaliatory. (Factual Finding 12.)

5. Notice may be given to respondent Jean Kortz that her services will not be required for the 2025-2026 school year.

ORDER

Notice may be given to respondent Jean Kortz that her services will not be required for the 2025-2026 school year.

DATE: 05/01/2025

Karen Reichmann

KAREN REICHMANN

Administrative Law Judge

Office of Administrative Hearings